Villa & Dawson LLP

Pasadena, TX
Phone 832-555-1247

Settlement Demand

2024-04-18

Claims Department
Harbor Point Mutual Auto Insurance

Re: Claim C-1340 - Demand for settlement

Dear Claims Representative:

We represent Nicole Gonzales in connection with the motor vehicle collision that occurred on 2023-03-19. Our client was lawfully traveling in the roadway when your insured changed lanes without signaling or checking that the lane was clear, striking the driver's side of our client's vehicle. The police report documents your insured's admission that he did not see our client's vehicle before the impact.

As a direct result of the collision, our client suffered a cervical neck strain and a lumbar back strain. Following the accident, our client was evaluated at an emergency department and has since attended ongoing physical therapy and chiropractic care. Our client continues to experience stiffness, headaches, and limited range of motion, and has missed time from work while recovering. Medical records and billing statements documenting these treatments are enclosed.

Liability in this matter is clear. Your insured violated the duty of care owed to other motorists by failing to yield the right of way during a lane change. We have calculated our client's damages, including past and future medical expenses, lost wages, and pain and suffering, and the total is set out below.

We demand payment of $216,000.00 to resolve all claims arising from this incident. This offer will remain open for thirty days from the date of this letter. If we do not receive a satisfactory response within that period, we are prepared to file suit without further notice.

Expert review: Jennifer Miles, accident reconstructionist

Sincerely,

Samuel Potts
Villa & Dawson LLP